

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

QVC, INC. AND CORNERSTONE BRANDS, INC., *Complainants*

v.

OCEAN NETWORK EXPRESS PTE. LTD., *Respondent*.

DOCKET NO. 25-09

Served: September 1, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

ORDER GRANTING FOURTH JOINT MOTION TO EXTEND DEADLINES

On August 28, 2026, the parties filed a Joint Status Report and Fourth Motion to Extend Deadlines seeking an extension of approximately three months of the current discovery and briefing deadlines (“Joint Report”). The parties indicated in their July 15, 2026, joint status report that they were making substantial progress in discovery but would promptly request additional time if necessary to complete discovery. The stated impediments to discovery include the exceptionally large volume of responsive documents identified, the need for the parties to identify, review and produce a large quantity of ESI requiring the use of third-party vendors to collect, search, and host data, the fact that both witnesses and documents are located in foreign countries, the fact that certain documents are in the possession of non-parties, and the need for the parties to depose a total of 21 fact witnesses. The Joint Report details the discovery conducted to date, identifies the remaining discovery not yet completed, and states that the current schedule would not allow the parties sufficient time to prepare their claims and defenses. For the reasons set forth below, the joint motion to extend deadlines is **GRANTED**, and the parties are directed to follow the amended schedule in this order.

In their Joint Report, the parties state that:

- Complainants have substantially completed production of documents. Complainants made an initial production of 13,367 documents to Respondent on March 6, 2026; a second production of 4,135 documents on March 16, 2026; and a third production of 1,124 documents on June 18, 2026. Complainants have subsequently identified additional sets of potentially responsive documents and are in the process of reviewing these documents to make supplemental productions as soon as feasible. Following these supplemental productions, Complainants will produce a privilege log to Respondent. (Joint Report at 2.)
- Respondent has also substantially completed its production of documents. Respondent made an initial production of 1,613 documents to Complainant on March 29, 2026, a second production of 646 documents on May 11, 2026, a third

production of 3,658 documents on June 5, 2026, a fourth production of 2,138 documents on June 16, 2026, and a fifth production of 10,500 on June 29, 2026. Respondent continues processing approximately 4,582 responsive documents (not including 32,350 responsive documents unrelated to QVC of which 27,768 have been designated attorneys eyes only), requiring redaction prior to their production to Complaints. The process is lengthy due to the complexity and significant amount of information that is unrelated to QVC requiring redaction. In many instances, this sensitive business information involves spreadsheets of thousands of pages and multiple levels of review for accuracy and consistency. Respondent has learned from its vendor that rolling productions of the documents is expected to commence in the week of August 31, 2026. Respondent is also in the process of preparing a privilege log that will be provided to Complainant following the completion of the productions. (Joint Report at 2-3.)

- The Parties will need additional time to conclude their respective reviews of supplemental document productions and to prepare for potentially numerous depositions. The Parties have collectively identified over twenty potential fact witnesses that may be deposed.
(Joint Report at 3.)

Based on the representations in the joint motion to extend deadlines, I find that the parties have established good cause to modify the schedule as requested. The record shows that the parties have worked diligently to conduct discovery in a complex and document intensive proceeding requiring extensive production of ESI and document review for responsiveness, confidentiality, and privilege. It also shows that counsel have worked diligently to meet existing deadlines. Given this history of working diligently to comply with established deadlines, counsel's stated need for additional time must be viewed in the context of the diligence they have demonstrated to date. Moreover, the extension of approximately three months is reasonable given the current status of the case. Counsel are directed to continue to cooperate with one another and use their best efforts to avoid the necessity of additional extension requests. The parties are hereby **ORDERED** to follow this schedule:

Event	Deadline
Joint Status Report 4 regarding discovery	09/30/2026
Complete depositions of fact witnesses	10/09/2026
Last day to serve interrogatories, requests for admission, and RFPs	10/09/2026
Disclosure of initial expert reports, if any	11/23/2026
Disclosure of rebuttal expert reports, if any	12/07/2026
Last day to respond to interrogatories, requests for admission, and RFPs	12/14/2026
Close of fact discovery	12/14/2026
Complete expert depositions and all discovery	12/23/2026
Complainant's initial brief, proposed findings of fact, and appendix	01/29/2027
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	03/01/2027
Complainant's reply and responses to proposed findings of fact	03/16/2027

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact on other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension.

Issued on: September 1, 2026



Mary Apostolakos Hervey
Administrative Law Judge